TARCISIOUS CHASARA
versus
THE STATE

IN THE HIGH COURT OF ZIMBABWE
MUTEVEDZI & NDLOVU JJ
BULAWAYO 5 MAY 2025 & 9 FEBRUARY 2026

Criminal Appeal

K Ngwenya, for the appellant
TP Mutarisi, for the respondent

NDLOVU J: On 5 May 2025, the appellant appeared before us contesting the decision of the court *a quo*. We dismissed the appeal. He has since requested that we furnish him with our full reasons for the dismissal. These are they.

Background of the case

[1] The appellant was arraigned before the court *a quo* facing a charge of assault as defined in section 89 of the Criminal Law (Codification and Reform) Act *[Chapter 9:23]* wherein the state alleged that on 6 November 2024, at TM Hyper Supermarket, Corner 11th Avenue and Fort Street, Bulawayo, the appellant and the complainant had a minor road traffic accident in which their cars collided. The complainant tried to persuade the appellant not to involve the police because neither vehicle was seriously damaged. The appellant refused to speak with the complainant, stating that he had no business talking with a conductor. Enraged by the complainant's attempts to engage him, the appellant slapped the complainant twice on the cheek. The complainant did not sustain any serious injuries, save for a swollen cheek, and was not medically examined.

Proceedings in the court *a quo*

[2] At his trial, the appellant pleaded not guilty to the charge levelled against him. The state led evidence from two witnesses, namely the complainant called Petros Sibanda, and the driver of the commuter omnibus, Maqhawe Bhebhe.

Petros Sibanda

[3] He told the court aquo that he is a commuter omnibus conductor and the complainant in this matter. He said on 6 November 2024, around 6 am, and near TM Hyper, Maqhawe Bhebhe was driving the commuter omnibus they were in when it collided with the appellant's motor vehicle. When this happened, the complainant then approached the appellant in a bid to negotiate a peaceful resolution of the matter, requesting that they forgive each other and not involve the police, because neither car had been significantly damaged. It was his testimony that the appellant refused to talk to him and said he had no business talking to a bus conductor. Thereafter, so the complainant's testimony proceeded, the appellant disembarked from his vehicle and assaulted him twice on the lower left side of the cheek with an open palm. The complainant opted to report the matter to the police and did not go for a medical examination because the assault was not severe. He also told the court *a quo* that he had been saved from further assault by Maqhawe Bhebhe, who restrained the appellant.

Maqhawe Bhebhe

[4] He confirmed that he was the driver of the commuter omnibus which collided with the appellant's car on the day in question. He said they were both driving in the same direction when the appellant tried to overtake on the yellow line, but was, however, interfered with by a car coming from the opposite side. It was his testimony that, in attempting to avoid an imminent head-on collision, the appellant moved back into the lane, thereby slightly side-swiping his car. Realising that none of the vehicles had been damaged, the witness said he tried to negotiate with the appellant that they avoid involving the police; however, the appellant adamantly refused to engage with him and insisted on involving the police. The

witness then returned to the car and advised the complainant that he had failed to negotiate with the appellant. The complainant then approached the appellant. The witness heard the appellant state that he was not going to speak to a conductor. The appellant disembarked from his vehicle and assaulted the complainant on the left cheek.

THE DEFENCE CASE

[5] The defence led evidence from two witnesses, who the appellant and one Winston Tambana.

Tarsicious Chasara

[6] The appellant denied the charge and testified that on the day in question, he was driving to work with his nephew, Winston Tambana, when a commuter omnibus encroached onto his lane and side-swiped his vehicle. He stated that he then stopped in front of the commuter omnibus. The complainant ran to his car and engaged him, saying that this was a minor issue they could resolve. Since the appellant did not know the complainant, he sent him away and called a colleague at his workplace to contact the police at the scene. He remained in his motor vehicle and disembarked only when the police arrived at the scene.

[7] He denied having ever been approached by the second state witness, Bhebhe, and having assaulted the complainant. It was his evidence that, when the complainant came to discuss the issue, the complainant stood on the passenger's side. The appellant told the court *a quo* that maybe the complainant's could have been motivated to fabricate the assault because he (appellant) had insisted on calling the traffic police. Under cross-examination, he confirmed that he and the complainant held different views regarding the accident and instructed the complainant to wait for the police, which he did until the police arrived.

Winston Tambana

[8] He told the court that he is the appellant's nephew and that on the day in question, he was going to town with the appellant, in the appellant's vehicle. The appellant was driving when, as they passed TM Hyper, the complainant saw a stationary commuter omnibus. As the appellant moved past it, the omnibus also moved and side-swiped their vehicle. He denied that the driver of the omnibus attempted to discuss the issue with the appellant,

stating that only the complainant had tried to do so but the appellant had refused to engage him. He disputed witnessing any assault on the complainant. He added that the complainant was lying because he realised that he was in the wrong. He further stated that the appellant did not disembark from his car until the police arrived at the scene.

Findings of the court *a quo.*

[9] The court was satisfied that the State had proven its case as alleged. While acknowledging some imperfections in the State case, it found them to be immaterial and remained convinced that the appellant had assaulted the complainant, and accordingly convicted the appellant of the offence of assault and sentenced him to pay a fine of $100.00 in default of payment, 3 [three] months imprisonment.

[10] Dissatisfied with the conviction, the appellant noted this appeal which was anchored on the following grounds;

GROUNDS OF APPEAL

"**AD CONVICTION**

1. The court *a quo* erred and misdirected itself in both the law and facts by convicting the Appellant on the charge of Assault when the State had failed to discharge the *onus*, as required by section 18(1) of the Criminal Law (Codification and Reform) Act (supra), to prove beyond a reasonable doubt two of the essential elements of the offence charged, namely, that he assaulted Petros Sibanda using open palm twice on the cheek and inflicted a swollen cheek on Petros Sibanda's body as alleged in the charge.
2. The court *a quo* erred and misdirected itself on the facts by convicting the Appellant after concluding that the inconsistencies in the State witnesses' evidence were minor to the extent that such a factual finding is so outrageous in its defiance of logic that no reasonable court applying its mind to the matter could have arrived at such a conclusion in that the inconsistencies to the root of the charge and the allegations.
3. The court *a quo* erred in law and in fact by convicting the Appellant on a charge of Assault, yet the State did not disprove, controvert, or prove that his defence, explanation and version of events was false beyond a reasonable doubt.
4. The court *a quo* erred in law and in facts by convicting the Appellant on the charge of "Assault" in that its findings and assessment of the totality of evidence is so outrageous in its defiance of logic that no reasonable court applying its mind to the matter could have arrived at such a conclusion.

RELIEF SOUGHT

WHEREFORE the exact nature of the relief being sought by the Appellant is that:

1. The instant appeal against conviction on the charge of Assault be and is hereby allowed/succeeds.
2. The judgement of the court *a quo* in respect of conviction of the Appellant on the charge of Assault be and is hereby set aside and be substituted by the following order:

"The accused person be and is hereby found not guilty and acquitted on charge of "Assault".

[11] Grounds of appeal numbers 1, 2 & 4, in essence, address the factual findings of the court a quo that led to the verdict rendered. The third ground of appeal stands alone and shall accordingly be discussed independently.

ISSUES

[12] The questions for determination in this appeal are the following: -

a. Whether or not the court a quo's decision to convict the appellant on the evidence before it, was outrageous in its defiance of logic to the degree that no reasonable court applying its mind to the matter could have arrived at such a conclusion thereby erred and misdirected itself in both the law and facts by convicting the appellant on the charge of assault?

b. Whether the court *a quo* erred in law and in fact by convicting the Appellant on a charge of Assault yet the State did not disprove, controvert his defence and or prove that his explanation and version of events was false beyond a reasonable doubt?

PROCEEDINGS IN THIS COURT.

[13] The respondent conceded the appeal, submitting that the court *a quo* had relied on the evidence of the State and did not give reasons for disregarding the appellant's evidence. We were not convinced by the respondent's reasons for conceding the appeal and accordingly directed that the appeal be argued.

[14] Mr Ngwenya, for the appellant, while abiding by the papers filed, argued that this was a classic boxing-ring incident. He argued that the court did not give any reasons for disregarding the appellant's evidence, even though the State witnesses' evidence contained evident inconsistencies that went to the root of the case and was therefore immaterial. He pointed out that in the court a quo, the complainant stated that he was slapped twice, a claim disputed by the second State witness. Counsel further argued that the essential elements of assault as per section 89 of the Criminal Law (Codification and Reform) Act *[Chapter 9:23]* were not proven, as the complainant did not sustain any visible injuries. Yet, it was trite that the intention to cause bodily injury was discharged. He also argued that the appellant gave a reasonable defence, which was corroborated by the defence

witness, such that it renders the court *a quo's* factual findings so outrageous in their defiance of logic.

THE LAW AND ITS APPLICATION

Whether or not the court a quo's decision to convict the appellant on the evidence before it, was outrageous in its defiance of logic to the degree that no reasonable court applying its mind to the matter could have arrived at such a conclusion thereby erred and misdirected itself in both the law and facts by convicting the appellant on the charge of assault?

[15] The appellant's bone of contention is that the court *a quo* erred when it convicted him in circumstances where the evidence adduced did not discharge beyond a reasonable doubt either of the essential elements of section 89 of the Criminal Code. However, the court *a quo* found that the evidence placed before it proved beyond reasonable doubt that the complainant was assaulted by the appellant, pointing out that the discrepancies between the state outline and the complainant's evidence with regards to the number of times he was assaulted did not go to the root of the matter. What was critical was that there was an assault upon the complainant.

[16] The Court a quo made several factual findings in this matter. It found that after the collision, the second State witness, who was the driver of the commuter omnibus, approached the appellant, who had also disembarked from his vehicle, trying to negotiate that they not involve the police, as neither of their cars was damaged. It equally found that that attempt to amicably resolve the issue by the second State witness was futile. Another of the court aquo's factual findings was that after the complainant got involved the appellant had taken the stance that he would not discuss anything with a conductor and thereafter assaulted the complainant.

[17] What the appellant has done is to invite this court to interfere with the above factual findings. The law is clear in that factual findings are the province of the trier of fact and will not be easily interfered with by an appellate court. (see *S v Mlambo 1994 ZLR 410, S v Robinson and others* 1968 (1) SA 666 (AD) at 675 G-H). In this case, the court a quo found the State's version more plausible than the appellant's. It was its call to make, after

it juxtaposed the state's case with the appellant's defence, wherein he alleged that he did not exit his vehicle at all. In our view, it seemed illogical that, after an accident had occurred in which his vehicle was possibly damaged, the appellant sought to a paint a picture of nonchalance where he did not think of even examining possible damages to his car. He further said that the driver of the omnibus also did not also disembark from his car. Needless to state, that assertion was contradicted by the complainant and the driver of the bus. Faced with those scenarios, there cannot be any basis for alleging that the factual findings of the court aquo were so outrageous as to defy logic. It does not mean that where a court makes a finding against a party, that finding becomes outrageous simply because the party so affected does not agree with it. Instead, the aggrieved party must demonstrate that the finding was irrational in the Wednesbury sense. The threshold of that irrationality is a high one and is not achievable by the mere say so. Here, the appellant did not even begin to satisfy the requirements. I therefore find no basis on the record of proceedings justifying a conclusion that the findings are so outrageous in their defiance of logic to the extent that they would invoke our jurisdiction as an appellate court to interfere with them.

[18] While it is well-established law in this jurisdiction that the state bears the burden of proving its case beyond a reasonable doubt in every criminal matter, that standard does not require proof to an absolute certainty. Rather there must simply be a high degree of probability that leaves no reasonable doubt in the mind of a reasonable person. The state is not obliged to eliminate every conceivable avenue of escape or account for remote or fanciful possibilities, as those do not constitute reasonable doubt. See *S v Isolano* 1985 (1) ZLR 62 (SC). In *casu*, my view is that the requirement was met through the multifaceted pieces of evidence adduced through the State witnesses which established the commission of the offence. The complainant's testimony was a crucial aspect of the State's case. His account of the incident, the circumstances leading up to the assault and the precise nature of the physical contact were accepted by the trier of fact. They served as a foundational element in establishing the factual matrix of the case. The testimony of Bhebhe, the second state witness who observed the incident, provided valuable corroboration, which bolstered the State's narrative as a more probable account of the events than the version of the

appellant and his witness. We have already pointed above, what essentially discredited the appellant's story.

[19] The appellant's argument that the State did not prove its case beyond a reasonable doubt because the complainant did not sustain any visible injuries and therefore an essential element of assault was not proven, is clearly a mistaken view of the law. A complainant in a case of assault need not be injured in any way. The mere application of force on the person of another without his or her consent is sufficient to establish the commission of an assault. In fact, in some instances, an assault may be proved where an accused simply points at another. The occurrence of physical harm or injury from the act is immaterial. The Court a quo found that the appellant slapped the complainant. At the time he slapped the complainant, the appellant was aware of what he was doing, and did so intentionally and without a lawful excuse. That was all the State needed to prove.

[20] Resultantly, I find no misdirection by the court *a quo* in that regard. The first, second and fourth grounds of appeal are singularly and collectively without merit.

Whether the court a quo erred in law and in fact by convicting the Appellant on a charge of Assault yet the State did not disprove, controvert his defence and or prove that his explanation and version of events was false beyond a reasonable doubt?

[21] I have mentioned above in dealing with the first, second and fourth grounds of appeal that this court finds no basis at law to interfere with the factual finding of the court a quo because I do not find any misdirection in the same. Indirectly, the resolution of the third ground of appeal becomes academic. From the decision of the court *a quo*, it is clear that the court *a quo* dismissed the version of the appellant. It was unbelievable.

[22] While it is law that an accused person bears no onus to prove his or her innocence, a court is empowered to factor in falsehoods by an accused person in deciding whether he or she can be given the benefit of the doubt. In *S v Mtsweni* 1985 (1) SA 590 (A), the court stated that a false statement by an accused can be used in drawing an inference of guilt from other reliable evidence. The appellant in *casu* did not gain the confidence of the court in respect of his version of events as I stated earlier. He was disbelieved when he said, that he never exited his motor vehicle after the accident, and that he was never approached by

the second state witness. That narrative, was intended to deflect the reality that when he disembarked his vehicle, he assaulted the complainant. Surely, if the appellant had insisted on calling the police, there would have been no reason for the complainant to allege that he had assaulted him. The reason advanced by the appellant as to why he said the complainant was falsely incriminating him was equally incredible. It added to the falsehoods which in the whole, made his defence not worth believing.

[23] It can, therefore, not be a worthwhile contention by the appellant that the court *a quo* erred in convicting him because the State did not disprove or controvert his defence and or prove that his explanation and version of events was false beyond a reasonable doubt. I therefore equally dismiss the third ground of appeal for want of merit.

Disposition

[24] It was for the above reasons that this court is left with no choice but to dismiss the appellant's appeal in in its entirety.

Order

[25] The appeal against conviction be and is hereby dismissed.

NDLOVU J.

MUTEVEDZI J **Agrees**

Messrs T J Mabhikwa and Partners Legal Practitioners, appellant's Legal Practitioners
National Prosecuting Authority, Respondent's Legal Practitioners